

23PSCV01869 23PSCV01869

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Department: H

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Case Number: 23PSCV01869 Hearing Date: August 28, 2026 Dept: H

Cuevas

v. Abellada,

Case No. 23PSCV01869

ORDER ON MOTION TO ENFORCE SETTLEMENT

Plaintiff Jinying Cuevas' Motion to enforce
settlement is GRANTED.

Background

Case No. 23PSCV01869

Plaintiff Jinying Cuevas

("Cuevas") alleges that she gave Fred Catolico Abellada ("Abellada") money on December 29, 2019 and January 9, 2020 so that Abellada could purchase real estate in the Philippines on her behalf, but that Abellada failed to make this purchase. Abellada has failed to return Cuevas' money to her.

On June 26, 2023, Cuevas filed a complaint, asserting causes of action against Abellada for: (1) Breach of Contract, (2) Breach of Contract, and (3) Common Counts.

On April 25, 2024 a "Stipulation Re Settlement" was entered; that day, the Court ordered Cuevas' complaint dismissed with prejudice, pursuant to Cuevas' oral request, with the Court retaining jurisdiction to enforce the settlement pursuant to Code of Civil

Procedure section 664.6.

On October 28, 2025, the Court deemed Case Nos. 283PSCV01869 and 24PSCV02916 related; Case Nos. 24PSCV02916 was designated as the lead case.

Case No. 24PSCV02916

Cuevas alleges that, on December 10, 21, and 29, 2019 and on January 9, 2020, she paid \$100,000.00 to Abellada as “investments.” When Cuevas inquired about these investments multiple times, Abellada could not produce documents about the investments. Cuevas requested that Abellada return Cuevas’s investments. On November 7, 2022, Abellada informed Cuevas that \$20,000 of the investments were forfeited by the company in Philippines but he could not produce any documents to prove this statement. On April 25, 2024, the parties settled, but Abellada has failed to make any payments to Cuevas as agreed upon.

On September 6, 2024, Cuevas filed a complaint against Abellada.

On October 28, 2025, the Court deemed Case Nos. 23PSCV01869 and 24PSCV02916 related; Case Nos. 24PSCV02916 was designated as the lead case.

Legal Standard

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement . . .” (Code Civ. Proc., 664.6, subd. (a).) “For purposes of this section, a writing is signed by a party if it is signed by any of the following: (1) The party. (2) An attorney who represents the party. . .” (Code Civ. Proc., 664.6, subd. (b).)

Discussion

Cuevas moves for an order to enforce the terms of the settlement agreement entered into by the parties on

April 25, 2024. Cuevas also seeks "additional compensation," including \$10,000.00 to account for the original damage, plus \$15,250.00 in interest damages and \$18,500.00 for translation services, consultation fees, transportation costs, preparation time and loss of working time, for a total award of \$63,750.00.

As previously noted, the Court observes that Cuevas filed a 6-page document on June 22, 2026 styled "Plaintiff's Revised Motion of to [sic] Enforce the Settlement & Additional Compensation Under CCP § 664.6." On June 24, 2026, Cuevas filed a 5-page document styled "Plaintiff's Revised Motion of to [sic] Enforce the Settlement & Additional Compensation Under CCP § 664.6," along with a 2-page document styled "Notice of Motion Plaintiff's Motion of to [sic] Enforce the Settlement & Additional Compensation." The Court will treat Cuevas' June 24, 2026 filing as the operative papers.

On April 25, 2024, Cuevas and Abellada attended a Mandatory Settlement Conference before Judge Bryant Yang, during which time the parties executed a written Stipulation Re Settlement. (Cuevas Decl., ¶¶ 2 and 3.) The Stipulation Re Settlement provides, in relevant part, as follows:

"1. Plaintiff Jinying Cuevas will accept and Defendant Fred Catolico Abellada will pay \$20,000.00 to resolve this case and any potential claims, disputes, or causes of action between the parties.

2. Defendant Fred Catolico Abellada will pay \$750.00 each month on the 28th of the month, starting May 28, 2024, to Plaintiff Jinying Cuevas until the \$20,000.00 are paid in full.

3. Defendant Fred Catolico Abellada may make payment by check or electronic transfer such as Zelle, Venmo, or Paypal.

4. Plaintiff Jinying Cuevas agree [sic] to dismiss this matter with prejudice."

The Stipulation Re Settlement contains a section 664.6 clause.

Abellada failed to make the required payments and remains in breach of the settlement agreement. (Cuevas Supplemental Decl., ¶ 4)

Cuevas argues that in addition to the \$20,000.00 stipulated in the settlement agreement, she is also entitled to prejudgment interest pursuant to California Civil Code 3287, post-judgment interest, court costs, and additional losses and expenses. (Supplemental motion to enforce settlement, p. 4.)

The Court cannot award those additional costs because “[s]ection 664.6 authorizes the trial court to enter a judgment reflecting the terms of the parties’ settlement agreement – nothing more, and nothing less.” (BTHHM Berkley, LLC v. Johnston (2024) 100 Cal.App.5th 1220, 1225.) “[N]othing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (Osumi v. Sutton (2007) 151Cal.App.4th 1355 [internal quotations and citation omitted].)

Here, the Stipulation Re Settlement reflects that the parties only agreed to \$20,000.00 paid in installments of \$750.00 each month starting May 28, 2024. (Stip. Re Settlement, p.1.) As a result, the Court can only enforce the settlement in the amount of \$20,000.00.

Conclusion

Cuevas’ Motion to Enforce Settlement is granted. The Court enters judgment in favor of Plaintiff and against Defendant in the sum of \$20,000.00.